

STATE OF NEW YORK

6376--A

2025-2026 Regular Sessions

IN SENATE

March 12, 2025

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Labor -- recommitted to the Committee on Labor in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the workers' compensation law, in relation to prohibiting insurance carriers and employers from withholding certain benefits from injured workers based on attachment to the labor market

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph w of subdivision 3 of section 15 of the workers'
2 compensation law, as amended by section 1 of subpart A of part NNN of
3 chapter 59 of the laws of 2017, is amended to read as follows:
4 w. Other cases. In all other cases of permanent partial disability,
5 the compensation shall be sixty-six and two-thirds percent of the
6 difference between the injured employee's average weekly wages and [~~his~~
7 ~~or her~~] such injured employee's wage-earning capacity thereafter in the
8 same employment or otherwise. Compensation under this paragraph shall
9 be payable during the continuance of such permanent partial disability,
10 [~~without the necessity for the claimant who is entitled to benefits at~~
11 ~~the time of classification to demonstrate ongoing attachment to the~~
12 ~~labor market, but~~] subject to reconsideration of the degree of such
13 impairment by the board on its own motion or upon application of any
14 party in interest however, all compensation payable under this paragraph
15 shall not exceed (i) five hundred twenty-five weeks in cases in which
16 the loss of wage-earning capacity is greater than ninety-five percent;
17 (ii) five hundred weeks in cases in which the loss of wage-earning
18 capacity is greater than ninety percent but not more than ninety-five
19 percent; (iii) four hundred seventy-five weeks in cases in which the
20 loss of wage-earning capacity is greater than eighty-five percent but

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 not more than ninety percent; (iv) four hundred fifty weeks in cases in
2 which the loss of wage-earning capacity is greater than eighty percent
3 but not more than eighty-five percent; (v) four hundred twenty-five
4 weeks in cases in which the loss of wage-earning capacity is greater
5 than seventy-five percent but not more than eighty percent; (vi) four
6 hundred weeks in cases in which the loss of wage-earning capacity is
7 greater than seventy percent but not more than seventy-five percent;
8 (vii) three hundred seventy-five weeks in cases in which the loss of
9 wage-earning capacity is greater than sixty percent but not more than
10 seventy percent; (viii) three hundred fifty weeks in cases in which the
11 loss of wage-earning capacity is greater than fifty percent but not more
12 than sixty percent; (ix) three hundred weeks in cases in which the loss
13 of wage-earning capacity is greater than forty percent but not more than
14 fifty percent; (x) two hundred seventy-five weeks in cases in which the
15 loss of wage-earning capacity is greater than thirty percent but not
16 more than forty percent; (xi) two hundred fifty weeks in cases in which
17 the loss of wage-earning capacity is greater than fifteen percent but
18 not more than thirty percent; and (xii) two hundred twenty-five weeks in
19 cases in which the loss of wage-earning capacity is fifteen percent or
20 less. For a claimant with a date of accident or disablement after the
21 effective date of ~~[the]~~ section one of subpart A of part NNN of chapter
22 fifty-nine of the laws of two thousand seventeen that amended this
23 subdivision, where the carrier or employer has provided compensation
24 pursuant to subdivision five of this section beyond one hundred thirty
25 weeks from the date of accident or disablement, all subsequent weeks in
26 which compensation was paid shall be considered to be benefit weeks for
27 purposes of this section, with the carrier or employer receiving credit
28 for all such subsequent weeks against the amount of maximum benefit
29 weeks when permanent partial disability under this section is deter-
30 mined. In the event of payment for intermittent temporary partial disa-
31 bility paid after one hundred thirty weeks from the date of accident or
32 disablement, such time shall be reduced to a number of weeks, for which
33 the carrier will receive a credit against the maximum benefit weeks. For
34 a claimant with a date of accident or disablement after the effective
35 date of ~~[the]~~ section one of subpart A of part NNN of chapter fifty-nine
36 of the laws of two thousand seventeen that amended this subdivision,
37 when permanency is at issue, and a claimant has submitted medical
38 evidence that ~~[he or she]~~ such claimant is not at maximum medical
39 improvement, and the carrier has produced or has had a reasonable oppor-
40 tunity to produce an independent medical examination concerning maximum
41 medical improvement, and the board has determined that the claimant is
42 not yet at maximum medical improvement, the carrier shall not receive a
43 credit for benefit weeks prior to a finding that the claimant has
44 reached maximum medical improvement, at which time the carrier shall
45 receive credit for any weeks of temporary disability paid to claimant
46 after such finding against the maximum benefit weeks awarded under this
47 subdivision. For those claimants classified as permanently partially
48 disabled who no longer receive indemnity payments because they have
49 surpassed their number of maximum benefit weeks, the following
50 provisions will apply:

51 (1) There will be a presumption that medical services shall continue
52 notwithstanding the completion of the time period for compensation set
53 forth in this section and the burden of going forward and the burden of
54 proof will lie with the carrier, self-insured employer or state insur-
55 ance fund in any application before the board to discontinue or suspend

1 such services. Medical services will continue during the pendency of any
2 such application and any appeals thereto.

3 (2) The board is directed to promulgate regulations that establish an
4 independent review and appeal by an outside agent or entity of the
5 board's choosing of any administrative law judge's determination to
6 discontinue or suspend medical services before a final determination of
7 the board.

8 § 2. Section 15 of the workers' compensation law is amended to add a
9 new subdivision 10 to read as follows:

10 10. Effect of attachment to labor market. Benefits or compensation
11 otherwise due under this section shall not be withheld, diminished, or
12 conditioned upon an injured worker's demonstration of attachment to the
13 labor market.

14 § 3. This act shall take effect immediately.